

## 25STLC05354 25STLC05354

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-08-13

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Case Number: 25STLC05354 Hearing Date: August 13, 2026 Dept: 25

HEARING DATE: Thurs., August 13, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: American Credit Acceptance LLC v. Crawford

COMP. FILED: 07-14-25

CASE NUMBER: 25STLC05354

NOTICE: OK

PROCEEDINGS: MOTION FOR ORDER AUTHORIZING SERVICE OF SUMMONS AND COMPLAINT BY ELECTRONIC MAIL PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 413.30

MOVING PARTY: Plaintiff American Credit Acceptance LLC

RESP. PARTY: None

MOTION FOR ORDER PERMITTING ALTERNATIVE SERVICE OF PROCESS

(Code Civ. Proc., § 413.30)

TENTATIVE RULING:

American Credit Acceptance LLC sued Theresa Crawford for claim and delivery of personal property, for per-trial writ of possession, and an order directing transfer of personal property and restraining order. American Credit now moves for an order authorizing Crawford to be served with the summons and complaint by electronic mail pursuant to Code of Civil Procedure section 413.30.

Code of Civil Procedure section 413.30 provides that "[i]f a plaintiff, despite exercising reasonable diligence" has been unable to serve the summons by any of the four usual methods of service—personal, substitute, mail with acknowledgement, and

publication—the court may allow the summons be served in “a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology.” (Id., § 413.30, subd. (a)(1); Crane v. Dolihite (2021) 70 Cal.App.5th 772, 786.) A plaintiff seeking to establish reasonable diligence must “set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found.” (Code Civ. Proc., § 413.30, subd. (a)(2).)

American Credit contends it attempted to personally serve Crawford at three different addresses found by skip trace but was unable to effect serve at any of them. American Credit also argues it sent a demand letter to Crawford's purported email address but received no response. However, American Credit does not provide the skip trace indicating the relevant addresses. While there are declarations of reasonable diligence at three addresses, American Credit has failed to demonstrate reasonable diligence as defined by Code of Civil Procedure section 413.30 because it has not exhausted nor shown why it is impossible to perform the other methods of service prescribed by Code of Civil Procedure sections 415.10, et seq.

Accordingly, the Court DENIES American Credit's motion for an order permitting service by electronic mail.